

Court No. - 3

Case :- WRIT - C No. - 24085 of 2011

Petitioner :- Shashi Devi

Respondent :- State Of U.P. And Others

Petitioner Counsel :- R.O.V.S. Chauhan, S.O.V.S. Chauhan

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

The petitioner's case is that the solitary electricity connection has been disconnected on account of non payment of due or dues which he had disputed earlier. However, she want to pay the amount which has been sent by way of earlier bill for the purpose of giving reconnection.

Sri Raj Shekhar Srivastava, learned counsel appearing for the respondent- Power Corporation has contended that in this case the electricity connection has been disconnected due to non payment of bills.

We are of the view that since the supply of electricity connection has been disconnected in this case, the petitioner will be entitled to get benefit of hearing and disposal of issues under Clause 7.10 of U.P. Electricity Supply Code. In any event the grievance will be made within seven days from the date of obtaining certified copy of the order. The Regulatory Commission concerned shall decide the same within 15 days from the date of making such grievance. In the course of consideration of cause, if the Regulatory Commission found that the grievance of the petitioner is genuine and the petitioner is inclined to deposit the entire sum which is liable to be paid, the authority can direct to reconnect the electricity connection within 72 hours from the date of such consideration of cause.

The writ petition is accordingly disposed of at the stage of admission, however, without imposing any cost.

Order Date :- 26.4.2011

S.B.